

xAI gets permits for 15 natural gas generators at Memphis data center

County regulators yesterday granted xAI permits to operate 15 natural gas turbines at its data center outside Memphis, despite the threat of a lawsuit.

Elon Musk's AI company has been operating as many as 35 generators without permits, the Southern Environmental Law Center (SELC) said. Altogether, they're capable of producing up to 421 megawatts of electricity. The legal organization has said that [it will sue xAI](#) for violations of the Clean Air Act on behalf of the NAACP.

The company [recently raised \\$10 billion](#), split evenly between debt and equity.

The [permit](#) issued by the Shelby County Health Department says that xAI can operate 15 Solar SMT-130 generators with certain emissions controls, which can generate up to 247 megawatts. The company has already been operating eight of the same model without permits, according to the SELC, though the group added that the ones in operation do have the appropriate pollution controls.

Under the conditions of the permit, xAI will still be allowed to emit significant amounts of pollution on a rolling 12-month basis, including 87 tons of smog-forming NO_x, 94 tons of carbon monoxide, 85 tons of volatile organic compounds, 73 tons of particulate pollution, and nearly 14 tons of hazardous air pollutants, including 9.8 tons of formaldehyde, a known carcinogen. The company is required to keep its own emissions records.

Before the permit was issued, a Memphis community group said that it had [\\$250,000 in funds](#) to pay for an independent air quality study.

The City of Memphis [performed its own air quality testing in June](#), though the SELC raised several concerns about the way the tests were carried out.

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The testing contractor did not measure ozone levels, the SELC noted, and the tests were done on days when the wind was blowing xAI's pollution away from the two closest testing sites. The contractor also placed the testing equipment either directly against or in close proximity to buildings, which can interfere with results.

Previously, the health department [claimed](#) that it did not have the authority to permit "mobile" gas-burning turbines if they were in operation for less than 364 days, saying that under those circumstances, the EPA was the relevant regulator. The SELC said that the interpretation of the law was "incorrect" and the letter justifying inaction was "without any legal analysis."

[AI](#), [air pollution](#), [Climate](#), [data centers](#), [xAI](#)
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July 15, 2025
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